

GZ: 2022-0.028.923 dated July 11, 2022 (Case Number: DSB-D124.4316)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Dr. Otto A*** (complainant) dated June 18, 2021, against Dr. Peter N*** (respondent) regarding the violation of the right to data portability as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 20, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; §§ 33, 34, and 57a para. 3 of the Aviation Act (LFG), Federal Law Gazette No. 253/1957 as amended; Art. 3 and Annex IV of Commission Regulation (EU) No. 1178/2011 of November 3, 2011, laying down technical requirements and administrative procedures related to flight crew in civil aviation pursuant to Regulation (EC) No. 216/2008 of the European Parliament and of the Council, OJ L 311 of November 25, 2011, p. 1.

REASONING

A. Submissions of the Parties and Procedural History

1. In an introductory submission dated June 18, 2021, the complainant summarized that he was filing a complaint regarding Art. 20 GDPR. The respondent had ignored the request made by the complainant on April 12, 2021, for the transmission of the data of the US Medicals with the last valid, expired document "medical IInd Class," contrary to his obligation as the data controller. The authority is urgently requested to compel the respondent to release the data.

As an attachment, the complainant submitted a request under Art. 20 GDPR to the respondent dated April 12, 2021.

2. In a statement dated November 29, 2021, the respondent essentially stated that he had informed the complainant of the negative determination result after the complainant could not achieve flight fitness for the intended class.

Furthermore, he had been informed about all necessary steps regarding the information obligation towards the authority. All procedure-relevant information had already been sufficiently communicated to the complainant, and the respondent had not committed any data protection-related misconduct. Moreover, he did not understand why a second procedure had been conducted in the same matter. The first-instance decision was handled under GZ: D124.3751 / 2021-0.600.420. The non-final decision is currently before the Federal Administrative Court for a decision.

As an attachment, the respondent submitted his appeal against the decision of the Data Protection Authority dated September 30, 2021, regarding GZ: D124.3751, 2021-0.600.420.

3. The complainant did not respond further, although he was given the opportunity by a letter from the Data Protection Authority dated December 16, 2021.

B. Subject of the Complaint

Based on the submissions of the complainant, the subject of the complaint is whether the respondent violated the complainant's right to data portability by not complying with the complainant's request dated April 12, 2021.

For clarity, it is noted that an alleged violation of the right to information is not the subject of the proceedings. However, such a matter was addressed in the decision of the Data Protection Authority dated September 30, 2021, regarding GZ: D124.3751, 2021-0.600.420. In this respect, the present proceedings – if the respondent assumes this – do not concern the same subject matter as in the proceedings regarding GZ: D124.3751, 2021-0.600.420.

C. Findings of Fact

1. The respondent is an aviation medical expert. The respondent determined during an aviation medical fitness examination that the complainant did not achieve flight fitness for the intended class and communicated this to him.

Assessment of Evidence: The findings are based on the comprehensible statements of the respondent. That the respondent is an aviation medical expert is also evident from the list of aviation medical experts of Austro Control GmbH, which was accessed ex officio by the Data Protection Authority on July 11, 2022, at https://www.austrocontrol.at/jart/prj3/ac/data/dokumente/DC_LFA_ACW_009_2022-07-07_0907304.pdf; the respondent appears there on page **.

2. The complainant submitted a request for data portability pursuant to Art. 20 GDPR to the respondent on April 12, 2021.

Evidence assessment: The finding is based on the statements of the complainant as well as the annex submitted by him.

D. From a legal perspective, it follows:

The prerequisite for exercising the right to data portability according to Art. 20 GDPR is, among other things, that the processing is based on consent according to Art. 6 para. 1 lit. a or Art. 9 para. 2 lit. a or on a contract according to Art. 6 para. 1 lit. b of the same legal provision.

In this case, the respondent, as an aviation medical expert, determined that the complainant did not meet the medical fitness requirements for the desired class.

According to § 33 para. 2 LFG, physical and mental fitness (§ 30 para. 1 lit. c), unless otherwise specified in a regulation according to para. 3, must be demonstrated by a medical certificate issued by an aviation medical authority (§ 34) or the supervisory authority (§ 34 para. 3). § 34 LFG stipulates in para. 1 that the issuance of an aviation medical certificate must be preceded by an examination at an aviation medical authority. Recognized aviation medical experts and certified aviation medical centers according to the provisions of Regulation (EU) No. 1178/2011 are considered aviation medical authorities. According to § 34 para. 3 in conjunction with § 57a para. 3 of the same legal provision, aviation medical authorities are subject to the supervision of Austro Control GmbH.

According to Art. 3 of Regulation (EU) No. 1178/2011, pilots of aircraft, without prejudice to Article 8 of this regulation, must comply with the technical requirements and administrative procedures established in Annex I and Annex IV of this regulation, as referred to in Article 4 para. 1 letters b and c and in Article 4 para. 5 of Regulation (EC) No. 216/2008.

From MED.A.025 lit. b para. 1 of Annex IV of Regulation (EU) No. 1178/2011, it is evident that the aviation medical center, the aviation medical expert, the general practitioner, and the occupational physician must inform the applicant after the completion of the aviation medical examinations and assessments whether he is fit or unfit, or whether he is referred to the medical experts of the approval authority, the aviation medical center, or the aviation medical expert. Lit. e of the same provision states that aviation medical centers, aviation medical experts, general practitioners, and occupational physicians must present all aviation medical records and reports and other relevant information to the medical expert of the competent authority upon request, if this is necessary for the issuance of fitness certificates and supervisory purposes. Lit. f states that according to point ARA.MED.160(d), aviation medical centers and aviation medical experts must enter and update the data in the European aviation medical database. According to MED.A.040 lit. c para. 1, fitness certificates for Class 1 and Class 2 must be extended and renewed by an aviation medical center or an aviation medical expert.

The required data for determining the aviation medical suitability of pilots is derived from MED.B.005 and the subsections 2 and 3 following this provision.

Consequently, it can be stated that the processing of personal data of the complainant by the respondent as an aviation medical expert is necessary for the fulfillment of a legal obligation within the meaning of Art. 6 para. 1 lit. c GDPR, which is in the public interest, or that the processing is necessary for the performance of a task under Art. 6 para. 1 lit. e GDPR, which is in the public interest.

In any case, the processing is not based on the consent of the data subject, and in such a constellation, there is no treatment contract (see the decision of the Data Protection Authority dated April 22, 2015, GZ: DSB-122.278/0007-DSB/2015).

Since a substantial prerequisite for exercising the right to data portability is therefore missing, the

complaint in this regard had to be dismissed for this reason alone.
It was therefore decided accordingly.